

Understanding and Applying Eligibility Criteria



AMENDMENT

In June 2024, minor text amends were made to the section 'Applying the Eligibility Criteria' and was updated to include information from the Care and Support statutory guidance about establishing whether the person's needs arise from a physical or mental impairment or illness.

These amends have been made to reflect feedback received following a full tri.x legal review of the Care Act 2014 Resource chapter 'The National Eligibility Criteria'.

[June 13, 2024](#)

1. When the National Eligibility Criteria Applies

The national eligibility criteria should be applied after one of the following assessments has been carried out under the Care Act:

- a. A needs assessment;
- b. A carer's assessment.

Reablement and other prevention services

The national eligibility criteria should not be applied when providing services solely under the duty to prevent, reduce or delay the need for Care and

Support.

Transition assessments

The national eligibility criteria should not be applied following a transition assessment. This includes:

- a. A child's needs assessment;
- b. A young carer's assessment;
- c. A child's carer's assessment.

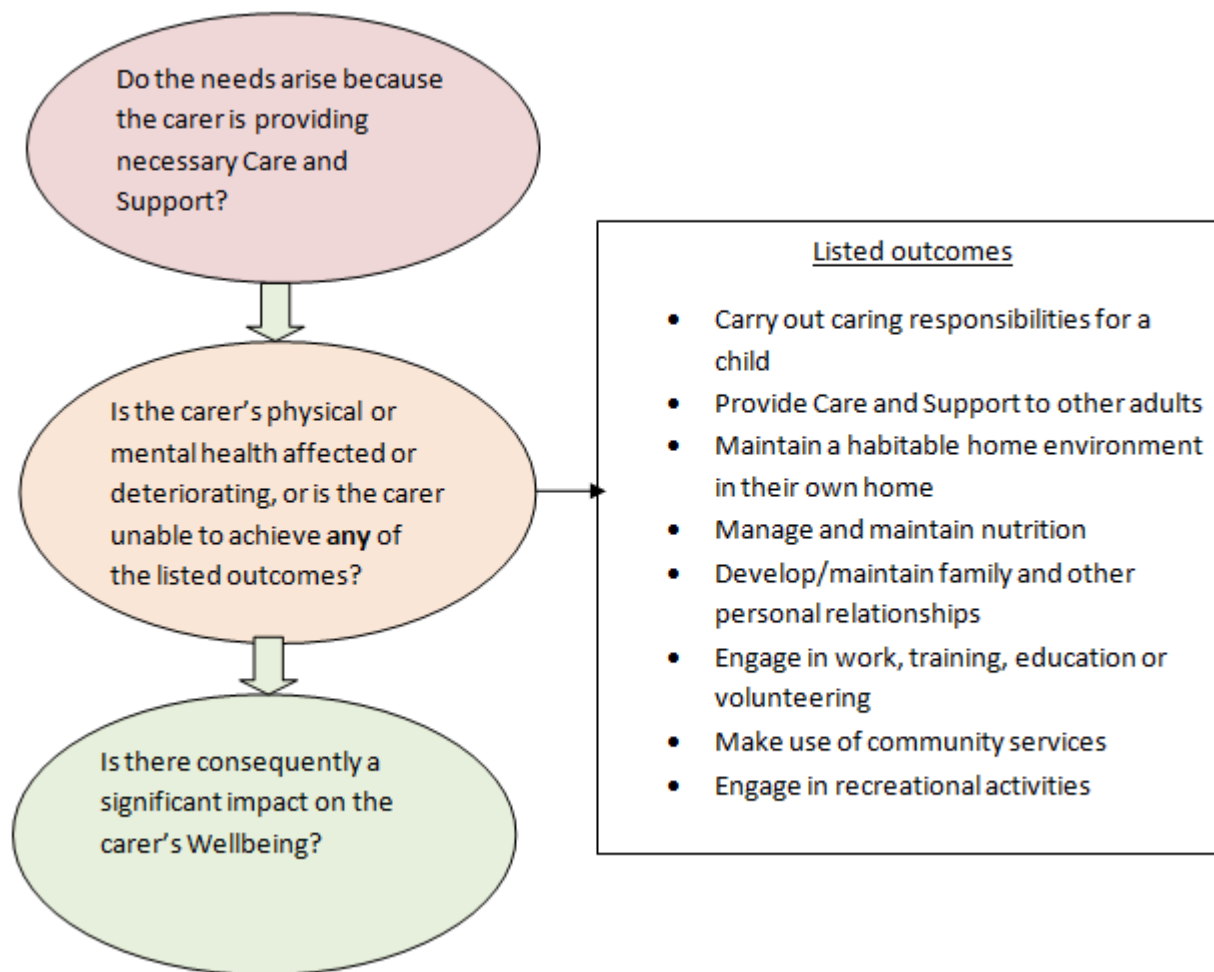
Instead you should proceed to transition planning if this is deemed appropriate.

See: [The Transition Plan](#)

If a transition assessment has identified unmet current needs it is the legal responsibility of children's services to meet those needs under the relevant children's legislation (the Children Act 1989 or the Children and Families Act 2014).

2. National Eligibility Criteria for People with Care and Support Needs

The National Eligibility Criteria for Carers with Support Needs is defined in Section 13 of the Care Act.



2.1 When to apply the criteria

The criteria must be applied *after* needs have been established.

2.2 The responsibility for applying the criteria

Under the Care Act the Local Authority is responsible for applying the criteria and making the final decision about eligibility. As such this is your responsibility as you are the Local Authority's representative.

2.3 How to apply the criteria

There are 3 steps to applying the criteria as set out below. For a person to be eligible you must be able to answer 'Yes' to every step. As soon as you answer 'No' the person is not eligible under the Care Act.

Step 1: Do the person's needs arise from a physical or mental impairment or illness?

The duty to meet eligible needs under the Care Act only applies when those needs arise from (or are the result) of a physical or mental impairment or illness (diagnosed or undiagnosed at the point of assessment).

This step is therefore seeking confirmation that the person's needs do not arise from, or are the result of destitution (poverty so extreme that a person lacks the means to provide for themselves).

A key question to ask

Example 1:

Mary has arthritis. She has contacted adult Care and Support for an assessment because she is finding it difficult to use the toilet, dress appropriately and maintain her home. During the assessment it is established that Mary's arthritis is not the cause of her problems. Her toilet is broken but if it were working she would be physically able to use it despite having arthritis. She has clothing but it is in a poor state and not appropriate for the current weather conditions, and her vacuum cleaner has been broken for some time, meaning she has not been able to clean her home. Under the Care Act the Local Authority has no duty to meet Mary's needs because they have not arisen from her arthritis, but because of her destitution. The Local Authority does have a duty to provide Mary with good information and advice about how any needs for Care and Support could be prevented or delayed and to signpost her to local organisations that may be able to help her financially.

Example 2:

Mary has arthritis. She has contacted adult Care and Support for an assessment because she is finding it difficult to use the toilet, dress appropriately and maintain her home. During the assessment it is established that her toilet is broken but even if it were working she would find using it difficult because of her arthritis. She doesn't have many clothes but those that she does have she is finding it increasingly difficult to take on and off. Her vacuum is not working but even if it was Mary would not be able to clean certain areas of her home, particularly her bathroom and kitchen. Under the Care Act the Local Authority has a duty to meet Mary's needs because they have arisen from her arthritis, and not because she is destitute. Mary's needs for Care and Support would be present regardless of her destitution.

The outcome of step 1 will be one of the following:

- a. None of the person's needs arise from, or are the result of a physical or mental impairment or illness;
- b. The person's needs all arise from, or are the result of a physical or mental impairment or illness; or
- c. Some needs arise from a physical or mental impairment or illness.

Need to know

The care and support statutory guidance defines physical or mental impairment or illness as either physical, mental, sensory, learning or cognitive disabilities or illness, substance misuse or brain injury.

Needs that do not arise or result from a mental or physical impairment or illness are not eligible under the Care Act, although the person is likely to need good information and advice about the measures they can take and support that may be available to them in their situation.

See: [Providing Information and Advice](#), which includes access to local and national information and advice resources (general and specialist).

If a person has all or some needs arising, or resulting from a physical or mental impairment or illness you should continue to step 2 in respect of these needs.

Step 2: Do the needs that the person has mean they are unable to achieve 2 or more of the listed outcomes?

This step should be carried out after step 1, where you will have confirmed that the person's needs arise or result from a mental or physical impairment or illness.

There are 10 needs-related outcomes listed under the Care Act:

- Manage and maintain nutrition;
- Maintain personal hygiene;
- Manage toilet need;
- Being appropriately clothed;
- Be able to make use of their home safely;
- Maintain a habitable home environment;
- Develop/maintain family and other personal relationships;
- Access/engage in work, training, education or volunteering;
- Make use of community services;
- Carry out caring responsibilities for a child.

You need to consider how the needs that have been identified through the assessment process impact on the person's ability to achieve each of the listed outcomes above.

There are likely 3 possible options:

- a. The person is able to achieve the outcome;
- b. The person is unable to achieve the outcome; or
- c. The outcome is not relevant to the person (and therefore their ability to achieve it or not should be disregarded).

Unable to achieve

Under the Care Act a person is deemed 'unable to achieve' a listed outcome if they are:

- a. Unable to achieve it without assistance;

- b. Able to achieve it without assistance but doing so causes them significant pain, distress or anxiety (this is a determination made using your own professional judgement about the impact that achieving the outcome has on the person based on the available evidence);
- c. Able to achieve it without assistance but doing so endangers or is likely to endanger the health and safety of the person or others (if this is unclear there should be supporting evidence available regarding risk); or
- d. Able to achieve it without assistance but takes significantly longer than would normally be expected (this is a determination made using your own professional judgement).

If the person is unable to achieve 2 or more outcomes then you should proceed to step 3 to consider the impact of this on their Wellbeing.

If the person's needs do not affect their ability to achieve 2 or more of the listed outcomes then they do not have eligible needs under the Care Act, although the person is likely to need good information and advice about the measures they can take and the support that may be available to them in their situation.

Fluctuating needs

Where the level of a person's needs fluctuates you must be satisfied that you established the level of need over an appropriate timeframe. You will know this if you have sufficient evidence to demonstrate:

- a. The nature and frequency of fluctuations;
- b. The impact of the fluctuations on other areas of need and Wellbeing.

It is important that there is a consistent approach to applying eligibility criteria when a person has needs that fluctuate. This should allow for flexibility to capture specific needs but should also ensure a fair application to avoid variances in eligibility outcomes for people who have similar needs.

Step 3: Is there a significant impact on Wellbeing?

This step should be carried out after steps 1 and 2 have identified:

- a. That the person's needs arise from, or are the result of a physical or mental impairment or illness; and
- b. That the person is unable to achieve 2 or more of the listed needs-related outcomes as a result of the needs identified in step 1.

Step 3 involves understanding and making a judgement about the impact of the person's inability to achieve the 2 or more outcomes identified on their individual Wellbeing. If the impact on Wellbeing is not significant then the need is not eligible under the Care Act.

Need to know

When deciding whether the impact on Wellbeing is significant or not you should be aware that the term significant impact can be defined in several ways:

- a. A single impact on a single area of Wellbeing that is seen as significant;
- b. A cumulative effect, where several areas of Wellbeing are impacted significantly or where the overall impact is significant; or
- c. A domino type effect, whereby the impact on Wellbeing may not yet be significant, but where ongoing stability in the situation is unlikely and it is anticipated that outcomes will be significantly impacted in the near future without support.

There are 9 domains of Wellbeing described under the Care Act. See: [Wellbeing Domains](#).

The impact of needs on Wellbeing for people with similar needs in similar situations can be very different and you should not make assumptions. A range of factors will influence the impact of needs, including:

- a. Personal resilience;
- b. The personal preferences of the person about how they live their life;
- c. The strength and support of any informal networks of support;
- d. The duration that the needs have been present;
- e. The financial circumstances of the person; and
- f. The accommodation type and area in which the person lives.

Example 1:

Chris has needs that arise from a physical impairment. He has a need for support with personal care each day and with household chores. Chris spends most of his time at home watching television and his reduced mobility means that he also finds it difficult to stand in the kitchen preparing food, having become increasingly reliant on microwave meals.

Chris's family are worried that he is not going out and would like for him to be supported into the local community each week. They would also like for Chris to be supported to prepare a main meal, as this is something he always used to do.

Chris's social care practitioner applies the national eligibility criteria, which establishes that Chris's needs do prevent him from achieving more than 2 of the listed outcomes. However, when talking to Chris about the impact on his Wellbeing he says that he prefers to stay at home watching the television and is enjoying box sets and films, sometimes with his friends who stop by every few days. He also says that, after a few weeks of shopping around has now found some nice ready meals that he is enjoying and finding easier than cooking from scratch.

The social care practitioner finds that Chris has eligible needs in relation to personal care and household chores but not in relation to accessing the community and managing nutrition. This is because the impact on Chris's Wellbeing in those areas is not significant.

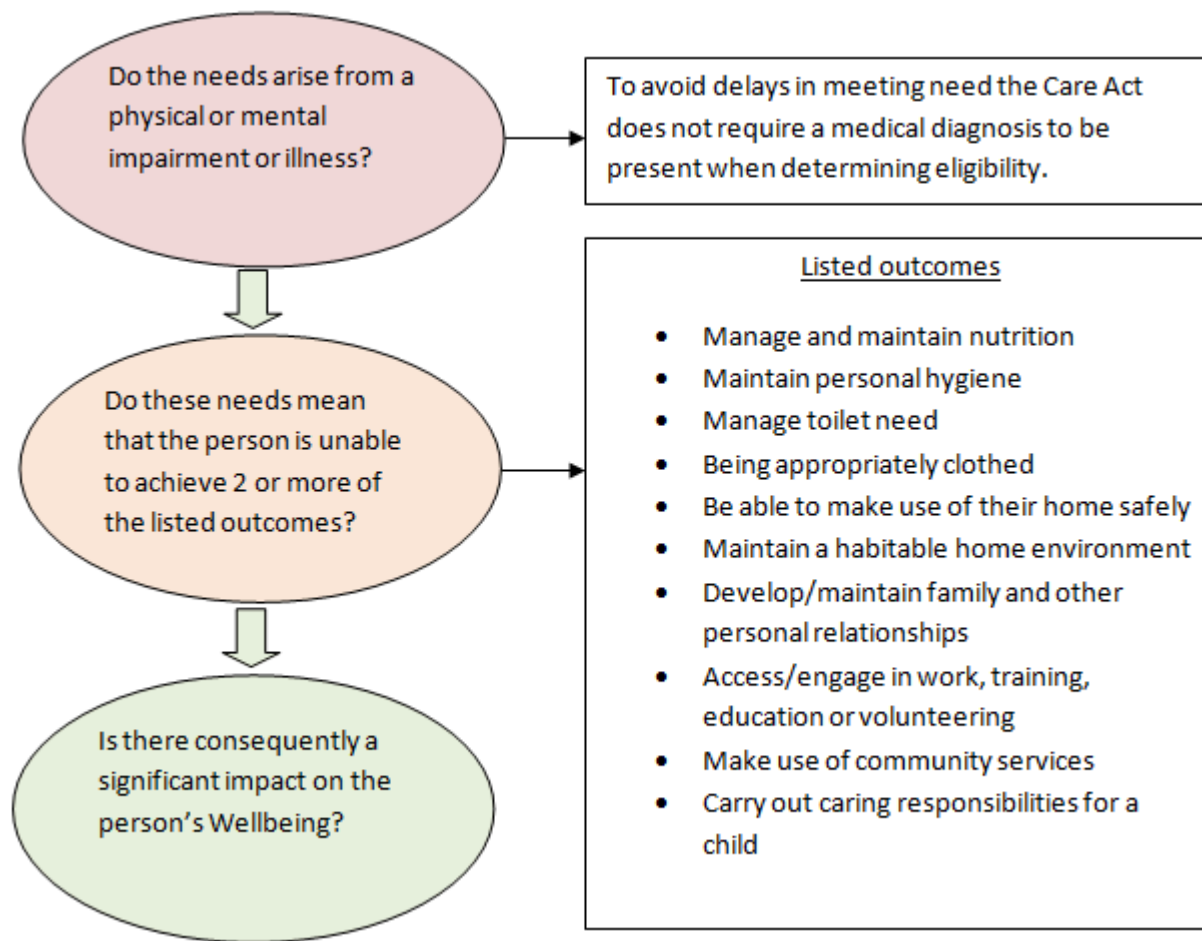
Example 2:

Tracy has needs that arise from mental illness. She is employed in a public facing role but after neglecting her personal care needs recently she has been issued with a verbal warning about her appearance at work. Tracy relies on her job to meet the rent for her flat and to ensure that her car is maintained so she can visit her family. The situation she is in is very stressful for Tracy and her motivation to maintain her appearance and also her home environment is deteriorating.

Even though Tracy is physically able to manage her personal care her social care practitioner deems her eligible under the Care Act because she is not currently able to achieve the outcome adequately, neither is she able to access and sustain her employment without some support. This is posing a significant cumulative risk to her Wellbeing in a number of areas. If she loses her job she will be at risk of losing her home, car and being unable to maintain important and therapeutic relationships with her family.

3. National Eligibility Criteria for Carers with Support Needs

The National Eligibility Criteria for Carers with Support Needs is defined in Section 13 of the Care Act.



3.1 When to apply the criteria

The criteria must be applied *after* needs have been established through an adult carers assessment.

3.2 The responsibility for applying the criteria

Under the Care Act the Local Authority is responsible for applying the criteria and making the final decision about eligibility. As such this is your responsibility as you are the Local Authority's representative.

3.3 How to apply the criteria

There are 3 steps to applying the criteria as set out below. For a carer to be eligible you must be able to answer 'Yes' to every step. As soon as you answer 'No' the carer is not eligible under the Care Act.

Step 1: Do the needs arise because the carer is providing necessary Care and Support?

In order for the carer to be deemed as providing necessary care and support to a person:

1. The person's need for care and support must have arisen from, or be the result of a mental or physical impairment or illness (and not a result of deprivation); and
2. The person must be unable to carry out the task themselves; and
3. The task being carried out must relate to one of the following recognised areas of need in the Care Act;
 - Manage and maintain nutrition;
 - Maintain personal hygiene;
 - Manage toilet need;
 - Being appropriately clothed;
 - Be able to make use of their home safely;
 - Maintain a habitable home environment;
 - Develop/maintain family and other personal relationships;
 - Access/engage in work, training, education or volunteering;
 - Make use of community services;

- Carry out caring responsibilities for a child.

Need to know

It does not matter whether the person with care and support needs has eligible needs for the carer to have eligible needs.

Need to know

It does not matter what the nature and intensity is of the support being provided by the carer. A carer providing emotional support once a week is just as eligible for support as a carer who provides support for 24 hours every day.

The outcome of step 1 will be one of the following:

- a. The carer is not providing any necessary care and support function;
- b. The carer is providing a mix of necessary and unnecessary care and support functions; or
- c. The carer is proving necessary care and support functions.

If the carer is not providing any necessary care they are not eligible for Support under the Care Act, although they are likely to require good information and advice about the measures they can take and support outside of the Local Authority that may be available to them in their situation.

See: [Providing Information and Advice](#), which includes access to local and national information and advice resources (general and specialist).

If a carer is providing one or more necessary care and support function you should continue to step 2 in respect of the support needs that arise from carrying out those functions.

Example 1:

Mary is providing support to John with his paperwork and meal preparation (chopping and peeling vegetables) because his eyesight has deteriorated. John wears glasses but these are no longer effective and he keeps forgetting to make an appointment to see his Optician for a prescription review. Although John's needs arise from a physical impairment Mary may not be providing necessary support because, with a new glasses prescription John could be able to carry out the tasks for himself. Mary is advised and agrees to support John to make the appointment with his Optician. A social care practitioner will monitor the situation in a month's time to see if any changes to his glasses have been made and the impact of this on his abilities to carry out the tasks.

Example 2:

Sarah supports Donna with personal care every morning. Donna has a learning disability. Donna encourages Sarah to carry out elements of the task independently when it is safe to do so, but she must be present at all times to provide verbal prompts and ensure tasks are carried out adequately. Donna's needs arise from a mental impairment and the tasks that Sarah carries out are necessary because Donna is not able to complete them herself.

Step 2: Is the carer's physical or mental health affected or deteriorating, or is the carer unable to achieve any of the listed outcomes?

This step should be carried out after step 1, where you will have confirmed that the tasks carried out by the carer are necessary.

Step 2 can be separated into 2 parts, and answering 'yes' to either will require you to move onto step 3.

Part 1: Is the carer's physical or mental health affected or deteriorating?

You must make a judgement about the impact that caring has had (or is likely to have) on the carers mental or physical health. This is a professional judgement and the carer does not have to be able to demonstrate that they have a physical or mental impairment to meet this step.

If the carer is found to have a mental or physical illness or impairment that is deteriorating naturally (not as a result of their caring role) they may be entitled to have a needs assessment to establish any care and support needs they may have in their own right, and this should be explained to them. If the carer wishes to pursue a needs assessment you should support them to access the right service using the team areas of this procedures site.

Part 2: Is the carer unable to achieve any of the listed outcomes

There are 8 carers needs-related outcomes listed under the Care Act:

- Carry out caring responsibilities for a child;
- Provide Care and Support to other adults;
- Maintain a habitable home environment in their own home;
- Manage and maintain nutrition;
- Develop/maintain family and other personal relationships;
- Engage in work, training, education or volunteering;
- Make use of community services;
- Engage in recreational activities.

You need to consider whether, as a direct result of caring the carer is unable to achieve any of the listed outcomes.

There are likely 3 possible options:

- a. The carer is able to achieve the outcome;
- b. The carer is unable to achieve the outcome; or
- c. The outcome is not relevant to the carer (and therefore their ability to achieve it or not should be disregarded).

Unable to achieve

Under the Care Act a carer is deemed 'unable to achieve' a listed outcome if they are:

- a. Unable to achieve it without assistance;
- b. Able to achieve it without assistance but doing so causes them significant pain, distress or anxiety (this is a determination made using your own professional judgement about the impact that achieving the outcome has on the carer based on the available evidence);

- c. Able to achieve it without assistance but doing so endangers or is likely to endanger the health and safety of the carer or others (if this is unclear there should be supporting evidence available regarding risk); or
- d. Able to achieve it without assistance but takes significantly longer than would normally be expected (this is a determination made using your own professional judgement).

If the carer is unable to achieve 1 or more outcomes as a result of their caring responsibilities then you should proceed to step 3 to consider the impact of this on their Wellbeing.

If the caring role does not affect their ability to achieve 1 or more of the listed outcomes then they do not have eligible needs under the Care Act, although the carer is likely to need good information and advice about the measures they can take and the support that may be available to them in their situation.

Fluctuating needs

Where the carer's ability to achieve the listed outcomes fluctuates you must be satisfied that you established the level of need over an appropriate timeframe. You will know this if you have sufficient evidence to demonstrate:

- a. The nature and frequency of fluctuations;
- b. The impact of the fluctuations on other areas of need and Wellbeing.

It is important that there is a consistent approach to applying eligibility criteria when a carer has needs that fluctuate. This should allow for flexibility to capture specific needs but should also ensure a fair application to avoid variances in eligibility outcomes for carers who have similar needs.

Step 3: Is there consequently a significant impact on the carer's Wellbeing?

This step should be carried out after steps 1 and 2 have identified:

- a. That the carer is providing necessary care; and
- b. As a result of providing care the carer's mental or physical health has deteriorated or been affected (or is likely to deteriorate in the future); or
- c. As a result of providing care the carer is unable to achieve 1 or more of the listed outcomes.

Step 3 involves understanding and making a judgement about the impact of the carer's inability to achieve the 1 or more outcomes identified on their

individual Wellbeing. If the impact on Wellbeing is not significant then the need is not eligible under the Care Act.

Need to know

When deciding whether the impact on Wellbeing is significant or not you should be aware that the term significant impact can be defined in several ways:

- a. A single impact on a single area of Wellbeing that is seen as significant; or
- b. A cumulative effect, where several areas of Wellbeing are impacted significantly or where the overall impact is significant.

In some cases, the impact on Wellbeing may not yet be significant, but ongoing instability in the situation means that the impact on Wellbeing is likely to become significant in the near future if support is not provided.

There are 9 domains of Wellbeing described under the Care Act. See: [Wellbeing Domains](#).

The impact of needs on Wellbeing for carers with similar needs in similar situations can be very different and you should not make assumptions. A range of factors will influence the impact of needs, including:

- a. Personal resilience;
- b. The personal preferences of the carer about how they live their life;
- c. The strength and support of any informal networks of support;
- d. How long the carer has been providing support to the person;
- e. The financial circumstances of the carer; and
- f. The accommodation type and area in which the person lives.

Example 1:

As a result of providing necessary care to his mum Chris is finding it difficult to care for his 6 year old daughter and is relying heavily on his new partner to help. She is more than happy to do so and gets on well with his daughter. Although Chris has support needs they are not eligible under the Care Act because the impact on his Wellbeing of not being able to care for his daughter as he would like is minimal.

Example 2:

As a result of providing necessary care to her son Tracy is experiencing symptoms of stress and anxiety, although there has been no formal diagnosis. Tracy is often tearful and feels exhausted most of the time. She doesn't see her friends very often and is worried about how much longer she can continue caring for her son without support.

Under the Care Act Tracy has an eligible need for support because, as a result of caring her mental health is deteriorating, she is unable to maintain personal relationships and the impact of this on her Wellbeing is significant.

4. Meeting Ineligible Needs

Under the Care Act the Local Authority has a power to meet needs that have not been deemed eligible, normally under the remit of preventing a crisis or longer term needs through a short term intervention. However, this power should not be used routinely or without authority and you should familiarise yourself with the local policy for meeting ineligible needs.

Where a decision is made to meet an ineligible need the arrangements to do should be in line with the meeting of eligible needs.

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